CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

FIRST SECTION

DECISION

Application no. 26184/02
by Gottfried WIRTH
against Austria

The European Court of Human Rights (First Section), sitting on 2 February 2006 as a Chamber composed of:

Mr C.L. ROZAKIS, *President*,
Mr L. LOUCAIDES,
Mrs F. TULKENS,
Mrs E. STEINER,
Mr K. HAJIYEV,
Mr D. SPIELMANN,
Mr S.E. JEBENS, *judges*,
and Mr S. NIELSEN, *Section Registrar*,

Having regard to the above application lodged on 1 July 2002,

Having deliberated, decides as follows:

THE FACTS

The applicant, Mr Gottfried Wirth, is an Austrian national who was born in 1957 and lives in Vienna. The Austrian Government ("the Government") are represented by their Agent, Ambassador Ferdinand Trauttmansdorff, Head of the International Law Department at the Federal Ministry of Foreign Affairs.

The facts of the case, as submitted by the parties, may be summarised as follows.

On 10 May 1999 the applicant and four other persons notified the Vienna Public Security Authority that they wished to form an association with the name "Action Group of Catholic Laity and Clergy in the Diocese of Vienna".

The Public Security Authority prohibited the formation of the association by decision of 18 June 1999. The applicant's appeal to the Federal Minister for the Interior was of no avail.

On 11 December 2001 the Constitutional Court dismissed the applicant's complaint as being unfounded.

Following communication of the application to the respondent Government, the applicant did not nominate a representative within the time-limit set by the Court, nor did he submit any observations. By registered letter of 10 November 2004 he was warned that his failure to react may lead the Court to strike his application out of its list of cases. The applicant did not reply.

COMPLAINT

The applicant complained under Article 11 of the Convention that the prohibition of the intended religious association violated his right to freedom of association. He further submitted that the prohibition was unlawful as it had not been served on him within the time-limit provided for in the Association Act.

THE LAW

The Court notes that, following the communication of the application to the respondent Government, the applicant failed to react to correspondence from the Court despite an explicit warning as regards the possible consequences of such a failure.

The Court reiterates the terms of Article 37 § 1 of the Convention which, so far as relevant, reads as follows:

> "1. The Court may at any stage of the proceedings decide to strike an application out of its list of cases where the circumstances lead to the conclusion that
>
> (a) the applicant does not intend to pursue his application; or ...
>
> However, the Court shall continue the examination of the application if respect for human rights as defined in the Convention and the Protocols thereto so requires."

Having regard to the circumstances of the present case, the Court concludes that the applicant does not intend to pursue his application. It finds no public policy reasons to justify a continued examination of the application (Article 37 § 1 *in fine* of the Convention). Accordingly, the case should be struck out of the list.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

Søren NIELSEN
Registrar

Christos ROZAKIS
President